Northernrailwayheadquarters vs P.S.E.R.C on 10 December, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 143 of 2010 &
I.A. No. 195 of 2010

Dated: 10th December , 2010

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Northern Railway Headquarters ... Appellant (s)
Versus
P.S.E.R.C. ...Respondent (s)

Counsel for the Appellant(s): Ms. Geetanjali Mohan for Northern Railways

Counsel for the Respondent(s): Mr. M.G. Ramachandran for PSEB

Mr. Sakesh Kumar, Mr. J.C. Shukla for PSERC

ORDER

We have heard the leaned counsel for the Appellant as well as for the Respondents.

There is no dispute with regard to the fact that the issue raised in this Appeal has already been decided by this Tribunal in favour of the Appellant in Appeal No. 124 of 2008 by the order dated 28th April, 2010.

In the above circumstances, we deem it appropriate to set aside the impugned order and remand the matter to the State Commission only to the extent of tariff for Railways with a direction to decide the issues in terms of the above mentioned decision of this Tribunal.

(V.J. Talwar)
Technical Member

(Justice M. Karpaga Vinayagam)
Chairperson

za/vs